

have had effect as if the following subsection were substituted for subsection (3) :—

“(3) Except as otherwise provided in this section, nothing in this Act shall affect the provisions of section ten of the Act of 1923 relating to the ascertainment of the amount of the additional annual grant for Scotland under that Act, and the amount payable to rating authorities in respect of that grant.”

Amendment
of s. 29 of
16 & 17 Geo.
5. c. 47.

2. Subsection (1) of section twenty-nine of the Rating (Scotland) Act, 1926 (which relates to interpretation) shall have effect as if the following words in the definition of “rateable value” were omitted “except that in the case of lands and heritages with respect to which there is total exemption from all rates the “rateable value shall be treated as nil.”

Short title
and extent.

3.—(1) This Act may be cited as the Rating (Scotland) Amendment Act, 1928, and the Rating (Scotland) Act, 1926, and this Act may be cited together as the Rating (Scotland) Acts, 1926 and 1928.

(2) This Act shall apply to Scotland only.

CHAPTER 7.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and Air Force.
[26th April 1928.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should

consist of one hundred and fifty-three thousand five hundred, including those to be employed at the depôts in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas under the Air Force (Constitution) Act, 7 & 8 Geo. 5. 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-two thousand five hundred, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid, and the provisions of the Air Force Act are due to expire at the same dates as the provisions of the Army Act : c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and twenty-eight on the following days :—

- (a) In Great Britain and Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title. 1. This Act may be cited as the Army and Air Force (Annual) Act, 1928.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

- (a) Within Great Britain and Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and twenty-eight, to the thirtieth day of April, one thousand nine hundred and twenty-nine, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and twenty-eight, to the thirty-first day of July, one thousand nine hundred and twenty-nine, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act. Prices in respect of billeting.

AMENDMENTS OF ARMY ACT APPLICABLE ALSO TO
THE AIR FORCE ACT.

4. For the purpose of abolishing death as a penalty for certain offences committed on active service the following amendments shall be made in the Army Act :— Abolition of death penalty in certain cases.

- (1) In subsection (1) of section six, paragraphs (a), (c), (d) and (g) shall be omitted and for paragraph (k) there shall be substituted the following paragraph :—

“(k) Being a soldier acting as sentinel leaves his post before he is regularly relieved,”

- (2) In section six, after subsection (1), the following new subsection shall be inserted :—

“(2) Every person subject to military law who commits any of the following offences; that is to say,

(a) Leaves his commanding officer to go in search of plunder; or

(b) Forces a safeguard; or

(c) Forces or strikes a sentinel; or

(d) Breaks into any house or other place in search of plunder; or

(e) Being a soldier acting as sentinel sleeps or is drunk on his post,

shall, on conviction by court-martial,

if he commits any such offence on active service, be liable to suffer penal servitude, or such less punishment as is in this Act mentioned; and

if he commits any such offence not on active service, be liable, if an officer, to be cashiered, or to suffer such less punishment as is in this Act mentioned, and if a soldier, to suffer imprisonment, or such less punishment as is in this Act mentioned.”

and the existing subsection numbered (2) shall be re-numbered (3).

(3) In subsection (1) of section eight the words “if
“ he commits such offence on active service,
“ be liable to suffer death, or such less punish-
“ ment as is in this Act mentioned, and if he
“ commits such offence not on active service”
shall be omitted.

(4) In subsection (1) of section nine the words “if
“ he commits such offence on active service, be
“ liable to suffer death, or such less punish-
“ ment as is in this Act mentioned, and if he
“ commits such offence not on active service”
shall be omitted.

Amendment
of s. 115 of
the Army
Act.

5.—(1) In subsection (10) of section one hundred and fifteen of the Army Act (which relates to the sale and purchase of horses and carriages in cases of emergency) after the words “during such period” there shall be inserted the words “and to such extent”, and after the words “sale and purchase of horses or carriages” there shall be inserted the words “or the sale and purchase of horses or carriages of any class or description so specified”.

(2) At the end of the said section the following new subsection shall be inserted:—

“(11) The power conferred by this section to issue a requisition of emergency shall include power to issue a requisition of emergency revoking, amending or varying a requisition of emergency previously issued.”

Amendment
of s. 177 of
the Army
Act.

6. In section one hundred and seventy-seven of the Army Act (which relates to the application of the Army Act to Indian and colonial forces) for the words “the general officer or colonel commandant commanding His Majesty’s forces” there shall be substituted the words “the officer, whether military or air force, not below the rank of colonel or group captain, commanding His Majesty’s forces.”

Substitu-
tion of
“brigadier”
for “colonel
command-
ant.”

7.—(1) In the enactments mentioned in the Second Schedule to this Act, the word “brigadier” shall be substituted for the words “colonel commandant” wherever those words occur.

(2) Paragraph (3A) of section one hundred and ninety of the Army Act is hereby repealed.

(3) This section shall come into operation both in Great Britain and Ireland, the Channel Islands and the Isle of Man, and elsewhere, on the first day of June nineteen hundred and twenty-eight.

8. In the enactments mentioned in the Third Schedule to this Act, the words "not holding an honorary commission," "not having an honorary commission," "not holding honorary commissions," and "Warrant and other" shall be repealed wherever they occur.

Repeal of
references to
warrant
officers
holding
honorary
commissions.

9. References in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of this Part of this Act shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I. of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply and subject to the following modifications; that is to say:—

Application
to Air
Force.

(a) the paragraphs of subsection (1) of section six to be omitted shall be those lettered (c) (d) (g) and (l);

(b) in the new subsection to be inserted in section six, for paragraph (a) the following paragraph shall be substituted,

"(a) without due authority alters or interferes with any air signal; or"

(c) in the amendment of section one hundred and fifteen, for the references to "horses or carriages" there shall be substituted references to "horses or carriages or aircraft";

(d) in the amendment of section one hundred and seventy-seven, for the reference to "the general officer or colonel commandant commanding His Majesty's forces," there shall be substituted a reference to "the air officer commanding the part of His Majesty's air force."

SCHEDULES.

Section 3.

FIRST SCHEDULE.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Tenpence per night for the first soldier and eightpence per night for each additional soldier.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Sevenpence each.
Dinner as so specified - - - -	Tenpence.
Supper as so specified - - - -	Fourpence.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Tenpence per night for the first soldier and eightpence per night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	Two shillings and fivepence per day.
Stable room without forage - - -	Sixpence per day.
Lodging and attendance for officer - -	Three shillings per night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force references to the Air Force Act and airmen shall be substituted for references to the Army Act and soldier.

Section 7.

SECOND SCHEDULE.

ARMY ACT.

Sections 43, 46 (1), 47 (1) and (5), 57A (9), 73 (3), 74 (1), 183 (2), 189 (2), (3), (4) and (6).

AIR FORCE ACT.

Section 189 (6).

THIRD SCHEDULE.

Section 8.

ARMY ACT.

Sections 83 (6), 145 (2), 180 (2) (f) (g), 182, 190 (4), (5), (6), (7).

AIR FORCE ACT.

Sections 145 (2), 182, 190 (4), (5), (6), (7).

CHAPTER 8.

An Act to extend to the administrative County of London the provisions of the Rating and Valuation Act, 1925, with respect to the valuation of hereditaments containing machinery and plant, to make temporary provision with respect to the deductions to be made in ascertaining rateable value, to amend sections eleven and thirty-seven and the Fourth and Fifth Schedules of the said Act, and to provide for obtaining decisions on points of law with a view to securing uniformity in valuation.

[10th May 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section twenty-four of the Rating and Valuation Act, 1925 (in this Act referred to as "the principal Act"), which provides for the valuation of hereditaments containing machinery and plant, and any order made by the Minister of Health thereunder shall apply for the purpose of the making or revision of valuation lists under the Valuation (Metropolis) Act, 1869, as they apply for the purpose of the making or revision of valuation lists under the principal Act.

Application
of s. 24 of
principal
Act to
London.
15 & 16
Geo. 5. c. 90.
32 & 33 Vict.
c. 67.

(2) If and so far as, regard being had to the extent, if any, to which in the making of any valuation list in